been partisan in the application of the rule of law,[1] which increasingly seems to be contingent on conformity to the ruling party's ideology. Citizens and state governments are faced with the bitter reality that their constitutionally guaranteed political, civil and cultural rights and freedoms are being methodically undermined, both by state and non-state actors.'[2] Furthermore, 'while the State has leveraged draconian laws[3] to suppress freedom of expression of speech, and cracked down on students, farmers, activists, public sector employees etc.,[4] non-state actors have imposed rigid norms with regard to food, clothing, language, mobility, religion and free speech on Dalits, Bahujans, the Adivasi, women, as well as ideological and religious minorities.'[5] Finally, 'the State has either delayed arresting perpetrators, or arrested journalists[6] who have reported on uncomfortable facts and because legislators affiliated to the ruling party have intervened positively on behalf of perpetrators.[7] In some cases, the State has also allied with non-state actors in intimidating and attacking minorities.'[8] This is civilizationally and constitutionally alien to India.

This perversion is corrupting the national soul and making Indians forget the common bonds that tie them together as Indians. This war on the constitutional idea of India is releasing centrifugal forces that are detrimental to national well-being. Just to cite some glaring examples, the civil war–like situation in Manipur, the fears and tensions among India's minorities (in the face of cultivated hatred and othering), the subdued but palpable fears among India's business class, the multiple student protests, protests by both rural and urban workers, the acute tensions between elected state governments and governors, etc. are all emblematic of escalating social tensions that are boiling over. It has therefore been rightly argued that 'this escalating spiral of state-sponsored terrorism and concomitant abdication of civic/welfare functions has not only created a pervasive distrust of many State institutions but also destabilized the social fabric of the nation. Far from being seen as the ultimate moral authority, today the State is viewed as just another contending stakeholder, untethered from both constitutional and institutional values.'[9]